

TENTATIVE RULINGS FOR April 28, 2026
Department R17
BEFORE THE HONORABLE JANET M. FRANGIE
(sitting on assignment)

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling (909) 285-3753 or telephoning the department at 909-285-3732] If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

1.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVRS2402726	<i>Roseanna Facundus v. General Motors, LLC, et al</i>	Defendant General Motors, LLC's Demurrer and Motion to Strike First Amended Complaint

Tentative Ruling:

Demurrer:

The unopposed demurrer by Defendant General Motors, LLC to the Fifth Cause of Action is sustained, **without leave to amend.**

Motion to Strike:

To the extent that the prayer for punitive damages is based on the Fifth Cause of Action, the motion is moot. The remaining four causes of action do not seek punitive damages nor are they allowed. To the extent that Plaintiff asserts a claim for punitive damages as to these four causes of action, the motion is granted and the prayer for punitive damages is stricken, **without leave to amend.**

Moving party is directed to give notice of ruling.

2.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVRS2410617	<i>Cameron Duhart v. Professional Automotive Relocation Services, Inc., et al</i>	Defendants' Motion for Summary Judgment

Tentative Ruling:

The Court rules as follows on Defendants' Motion for Summary Judgment:

First and Third Causes of Action:

The motion is denied. Plaintiff has made a prima facie showing of discrimination. (See Declaration of Brittanie Brown.)¹ Defendants fail to introduce any evidence to rebut this showing by producing admissible evidence that it discharged Plaintiff for a legitimate nondiscriminatory reason. Furthermore, there are triable issues of fact as to whether or not Plaintiff was subject to discrimination.

The balance of the motion is denied. As Defendants moved solely for summary judgment and did not seek, in the alternative, summary adjudication, the Court declines to reach the merits of Defendants' request for summary judgment as to the remaining causes of action in the Second Amended Complaint. "A motion for summary adjudication cannot be considered by the court unless the party bringing the motion for summary judgment duly gives notice that summary adjudication is being sought as an alternative to summary judgment, in the event summary judgment is denied." (*Motevalli v. Los Angeles Unified School Dist.* (2004) 122 Cal.App.4th 97 114.)

Disputed Material Facts:

Defendants' UMF #5, Issue #1; UMF #3, Issue #2; UMF #1, Issue #3; UMF #2, Issue #3 and UMF #4, Issue #3. Plaintiff's additional facts #1-9

Evidentiary Basis:

- (1) Defendants' Declaration of Alaina C. Hawley.
- (2) Plaintiff's Declaration of Sevana Nourian with attached Exhibits 1-13.
- (3) Plaintiff's Declaration of Brittanie Brown.

Plaintiff is directed to give notice of ruling.

¹ The Court overrules Defendants' objections to Exhibit 3 attached to Nourian's declaration, the subject email from Tesfu, and the declaration of Brown. Defendants' objections fail to comply with the formatting requirements set forth under Rule 3.1354 of the California Rules of Court. Further, as to Defendants' objection to Brown's declaration, Defendants fail to state an evidentiary ground to object to this declaration.